

From: [Ian Danforth](#)
To: [ostp-ai-rfi](#)
Subject: [External] AI Action Plan
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To whom it may concern,

I am writing in support of an AI Action Plan that provides a clear ruling of "fair use" for training machine learning models on publicly accessible data even if that data is protected by copyright.

It is impossible to come up with a notion of copyright that respects creative endeavors if humans are not allowed to learn and draw inspiration from copyrighted works. The process of viewing, analyzing, and incorporating aspects of copyrighted works into future creative efforts is definitional to how artists learn and produce new art. There can be no meaningful distinction between how humans accomplish this task and how machine learning models accomplish this task. Some might say that the scale of the process is different, but consider that copyrighted works are viewed millions of times by individuals all of who are subtly or not so subtly influenced by that experience. Machine learning models learn from and generate new output influenced by copyrighted material in the same way. It is equally true for humans and machines that they could repeat verbatim something that they have read, but we punish that act, not the fact that they read the work in the first place. And that is the clear purpose of copyright, to protect an artist's ability to **distribute** and **perform** their works. It has never been, and must never be allowed to become, a way for artists to prevent people from viewing, appreciating, and learning from their art. Anything other than a clear ruling of "fair use" would give this unintended power to artists and undermine the foundations of the creation of every subsequent piece of art. Does a new drawing seem influenced by Disney? Well then Disney would be able to sue for the artists having **seen** the original work. Such an absurdity must be rejected. Machines and humans alike should be allowed to view all publicly, or privately acquired, media and art that they wish and, short of redistributing or outright copying that media, be allowed to incorporate it into their understanding of the world and their future creative endeavors.

Sincerely yours,

Ian Danforth

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